



U.S. Department
of Transportation

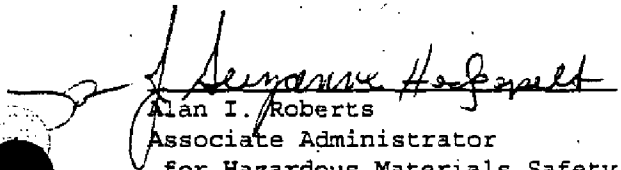
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10535 (EXTENSION)
ORIGINAL June 7, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10535 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT- 31, 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Pyrotechnic Specialties, Inc.
Byron, GA

July 19, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
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Administration

DOT-E 10535

JUN 7 1991

400 Seventh Street, S.W.
Washington, D.C. 20590

1. ICI Aerospace and Automotive Products, Byron, GA, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of zirconium metal, wet with at least 25 percent ethyl alcohol by weight, in non-carbon polyethylene containers overpacked in strong metal cans and wooden boxes and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from ICI Aerospace and Automotive Products dated January 16, 1991 and additional information dated January 28, 1991, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Zirconium metal powder, wet with at least 25 percent ethyl alcohol by weight, classed as a flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Zirconium metal, wet.

5. REGULATION(S) AFFECTED. 49 CFR 173.214(c).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a combination packaging consisting of a non-DOT specification non-carbon polyethylene container within a strong metal can which is then placed into a DOT Specification 15B wooden box as prescribed in 49 CFR 173.214(c)(1) except that the wetting solution is ethyl alcohol. In addition, the following quantity restrictions apply:

a. Not more than 3 pounds of zirconium metal powder may be placed within one polyethylene container; and

b. Not more than 6 polyethylene containers overpacked in strong metal containers may be placed within a single DOT Specification 15B wooden box.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are

b. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

c. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

d. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of fire or accident.

e. The outside of each package must be plainly and durably marked "DOT-E 10535".

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. March 31, 1993.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 7 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.
Dist: FHWA.